

SOTOMAYOR, J., dissenting

holding is unprecedented. See Part VI, *infra*. Finally, this majority's project will have disastrous consequences for the Presidency and for our democracy. See Part VII, *infra*.

III

The main takeaway of today's decision is that all of a President's official acts, defined without regard to motive or intent, are entitled to immunity that is "at least . . . *presumptive*," *ante*, at 614, and quite possibly "absolute", *ante*, at 615. Whenever the President wields the enormous power of his office, the majority says, the criminal law (at least presumptively) cannot touch him. This official-acts immunity has "no firm grounding in constitutional text, history, or precedent." *Dobbs v. Jackson Women's Health Organization*, 597 U. S. 215, 280 (2022). Indeed, those "standard grounds for constitutional decisionmaking," *id.*, at 279, all point in the opposite direction. No matter how you look at it, the majority's official-acts immunity is utterly indefensible.

A

The majority calls for a "careful assessment of the scope of Presidential power under the Constitution." *Ante*, at 605. For the majority, that "careful assessment" does not involve the Constitution's text. I would start there.

The Constitution's text contains no provision for immunity from criminal prosecution for former Presidents. Of course, "the silence of the Constitution on this score is not dispositive." *United States v. Nixon*, 418 U. S. 683, 706, n. 16 (1974). Insofar as the majority rails against the notion that a "'specific textual basis'" is required, *ante*, at 637 (quoting *Nixon v. Fitzgerald*, 457 U. S. 731, 750, n. 31 (1982)), it is attacking an argument that has not been made here. The omission in the text of the Constitution is worth noting, however, for at least three reasons.

First, the Framers clearly knew how to provide for immunity from prosecution. They did provide a narrow immunity